

ORDER SHEET.

**IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT.**

Case No. Writ Petition No.29929 of 2014
Muhammad Arshad etc.
Versus.
Member Board of Revenue etc.

Sr.No.of Order/ Proceeding.	Date of Order/ Proceeding.	Order with signatures of Judge and that of parties or counsel, where necessary.
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13.11.2014.

Malik Noor Muhammad Awan, Advocate, for the
petitioner.
Ms. Asma Hamid A.A.G.

Through this writ petition the petitioners have challenged the validity of notice dated 16.10.2014 issued by the learned Member (Judicial-IV), Board of Revenue, Punjab.

2. Brief facts of the case, as contended by the learned counsel for the petitioners are that the petitioners were allotted land under the Well Sinking Scheme in the year 1952. The Scheme was formulated under section 30(3) of the Thal Development Authority Act. In some of the cases propriety rights were conferred upon the petitioners. Some of the allottees transferred the land to new purchasers. The petitioners were not yet issued the final transfer order. Requested for the same to the Board of Revenue but the notice, in issue, has been given by the Board of Revenue, which is illegal and without jurisdiction.

3. The learned counsel for the petitioner submits that the writ is maintainable against the notice. The matter falls under the past and close transaction. Further submits that without inquiry impugned notice has been given by the Board of Revenue. In this regard the learned counsel relies on the cases

reported as Amin Abdullah Versus Commissioner, Sargodha Divison etc. (1981 CLC 680), Hakim Abdur Rahim Khan and others versus West Pakistan Government through the Secretary, Resettlement and Claims, Lahore and another (PLD 1986 SC 96), Abdul Ghafoor and others versus Mst. Ralsoolan Bibi and others (2009 YLR 1593), Mst. Imam Bibi versus Allah Ditta and others (PLJ 1989 SC 397), Ali Muhammad Versus Mst. Rabia Bibi and 3 others (PLD 1971, Haghdad ul Jadid 38), Atta Muhammad Versus Maula Bakhsh and others (2007 SCMR 1446), Mrs. Bukhtawar versus Abdul Majeed through Legal Heirs and others (2001 SCMR 1423), M/s. Muhammad Saleem, Muhammad Siddique and Co. (REGD.) Versus Abdul Hakeem etc. (NLR 2000 Karachi. 153), Member, Board of Revenue/Chief Settlement Commissioner etc. Lahore and 2 others versus Mst. Sajida Parveen and others (2010 SCMR 1942), Ussama Tariq Versus Administrator (Residual Properties/Additional Commissioner (Revenue) Lahore and 3 others (2003 SCMR 616), Member (Colonies) Board of Revenue Punjab, Lahore and others Versus Muhammad Shafi and others (2008 SCMR 589), Mst. Fehmida Begum Versus Federation of Pakistan through Secretary, Federal Secretariat, Islamabad and 6 others (PLD 2000 Lah. 602), The Government of the Punjab through Collector, Lahore and others Versus Muhammad Khan Baloch (2001 PLC 27), Abdur Rahman Bhatti and another Versus Member (Colonies) Board of Revenue Punjab Lahore and another (PLD 2011 Lah. 543),

4. Learned Law Officer has appeared on court's call and submits that the petitioners are still tenant

and the land is owned by the Provincial Government. The proceedings of proprietary rights are in progress. The petitioners are not eligible under Notification No. 629-63/711/C-11 dated 15.02.1963 and Notification No. 5782-C dated 29.06.1938. The learned Law Officer further submits that under the doctrine of ripeness and doctrine of pre-maturity, this writ petition is not maintainable. In this regard the learned Law Officer relies upon the following judgments reported as Virasat Ullah Versus Bashir Ahmad, Settlement Commissioner (Industries) and another (1969 SCMSR 154), (1989 SC 508), Khalid Mehmood Chaudhary and others Versus Government of Punjab, through Secretary, Livestock and Dairy Development, (2002 SCMR 805), and Niaz Ali and others Versus Federation of Pakistan and others (2004 MLD 460).

5. Heard. Record perused.

6. All the cases referred by the learned counsel for the petitioner are not relevant on the point in issue. Show cause notice has been given by the respondents to the petitioners without replying the same. Petitioner filed this Writ Petition, which is premature. Show cause notice does not mean that matter in issue has been decided against the petitioners.

7. The petitioners have an opportunity to place their case/version before the concerned authority. The allegation raised in notice requires factual inquiry that cannot be made in the constitutional jurisdiction reliance is placed in the cases reported as Anjuman Fruit Arthian and others Vs. Deputy Commissioner Faisalabad and others (2011 SCMR 279) and Muhammad Younus Khan and 12 others Vs.

Government of N.W.F.P. through Secretary Forest and Agriculture Peshwar and others (1983 SCMR 618). The writ petition is pre-mature, as such, is not maintainable.

8. In a case titled as Virasat Ullah Versus Bashir Ahmad, Settlement Commissioner (Industries) and another (1969 SCMSR 154), the Honourable Supreme Court of Pakistan as observed as under:-

“We are unable to see any point in this leave petition except the uneasiness on the part of the petitioner to undo the notice issued to him by the Settlement Commissioner which merely required that the petitioner should disclose his credential as the transferee of the property in dispute. The learned Single Judge has directed that the entitlement of the petitioner should be duly examined and we see no apparent reason why the petitioner wants to avoid this examination. The grievance of the petitioner at this stage is baseless and premature. This petition is dismissed.”

9. In another case reported as Khalid Mehmood Chaudhary and others Versus Government of Punjab, through Secretary, Livestock and Dairy Development (2002 SCMR 805), the Honourable Supreme Court of Pakistan observed as under:-

“The disputed show cause notice is still at preliminary stage and after considering the replies of the petitioners if the competent Authority comes to the conclusion that it was a case of taking further proceedings under the Ordinance, it will be required to constitute an Enquiry Committee or appoint an Enquiry Officer. The Constitutional petitions in the circumstances were rightly held to be premature and dismissed as such. The impugned judgment does not suffer from any legal infirmity or illegality so as to warrant interference by this Court”

10. This Court has also reiterated the same view i.e. Muhammad Mahmood Ali Versus Pakistan

through Secretary, Ministry of Finance (1984 CLC 142), Muhammad Akhtar Sherani and 35 others versus The Punjab Text Book Board, Lahore and 4 others (2001 PLC (CS) 939), Messrs Chakwal Textiles Mills Limited, Rawalpindi Road Chakwal and another versus Director Social Security, Rawalpindi and 2 others (2012 PLC 270), Abdul Raheem Khan, Executive Manager (Operation) MEPCO its Division, D.G. Khan Versus Managing Director PEPCO, WAPDA House, Lahore and 2 others (PLJ 2012 Lahore 93 D.B), Mst. Zahida Shama Versus Secretary Education and other (PLJ 2002 Lahore 1479), Niaz A. Baloch Versus Chairman, National Accountability Bureau and 2 others (2008 P.Cr.L.J 1463) and Tariq Mehmood Versus Air Cdre. (R.) Nayyar Q. Khawaja and 4 others. (2003 P.Cr.L.J.1512).

11. In view of above, this petition is pre-mature and is not maintainable and the same is **dismissed in limine.**

12. However, in the interest of justice, the respondents are directed to decide the impugned show cause notice through a speaking order after granting hearing to the petitioners and allowing them to raise all questions of law and facts within a period of one month from the date of receipt of certified copy of this order strictly in accordance with law.

(Ch. Muhammad Iqbal)
Judge.

Approved for reporting.
Judge.